

AMITABH BACHCHAN

A fake clip from the show *Kaun Banega Crorepati* shows Bachchan asking a question related to the Shivraj Singh Chouhan government in MP



VINESH AND SANGEETA PHOGAT

The now-debunked photo showed the two wrestlers smiling while being detained by the police

KAJOL

The deepfake morphed Kajol's face over an old video of Rosie Breen, an influencer

if corrective action is taken, it doesn't work. How do we control the virality of it?"

FIGHTING DEEPFAKES

A deepfake itself is not enough to cause mayhem. Back in 2012, all it took were hate messages on SMS to trigger the panic-stricken flight of thousands of people from southern cities such as Bengaluru back to their hometowns in the northeastern states. If deepfakes are a product of new tech, the other part of the equation is the immense reach of social networks on which they now travel and become viral.

According to MeITY MoS Chandrasekhar, the government's amendments to the Information Technology Act rules in February 2021, October 2022 and again in April 2023 were all geared to meet these new challenges, essentially by making it obligatory for social media platforms to ensure that the content on their platforms is not misinformation. "With the IT rules now, we say that the safe harbour [clause for social media platforms] is conditional and conditional on them addressing the 11 types of content that they cannot have on their platforms," he says in the interview with the magazine. Included in the banned content is 'defamatory, obscene, pornographic, paedophilic content' as well as 'knowingly and intentionally communicating any information which is patently false or misleading in nature but may reasonably be perceived as a fact'.

On November 7, Chandrasekhar issued a stern advisory to all social media platforms asking them to exercise due diligence and remove deepfakes within 36 hours of their being reported to them. He warned that if the platforms failed to comply, they would lose protection under Section 79 of the Information Technology Act, 2000. Termed the 'safe harbour clause', the provision protects them from any liability arising out of hosting third-party information, data or communication link. "If they do not do so, then the safe harbour falls away and whoever is aggrieved can take them to court and criminally prosecute them under the IPC and IT Act," says Chandrasekhar. Under these acts, social media platforms face up to five years in prison and a fine if found guilty of violating its provisions. In the coming weeks, MeITY will work with these social media platforms to ensure that "we have a sense of clear outcomes in terms of what technology, what tools will be deployed and what the regulatory framework of accountability would be". The government is planning to introduce stiff provisions to deal with deepfakes in the proposed Digital India Act that is now under discussion and will soon replace the IT Act, 2000.

Globally, technology companies such as Google and Meta have announced several measures over the past few months to tackle deepfakes. Using watermarks, like in the Photoshop era, is one of them. Google, for instance, said in August that its SynthID tool, which embeds a digital watermark—imperceptible to the human eye, but detectable for identification—directly into the pixels of an image, is currently in beta testing for users of Imagen, the company's new text-to-image model. It is also working on tools to detect synthetic audio in its audio generation framework AudioLM.

Another is to ensure that advertisers, especially of political content, disclose when their ads have been digitally altered or contain synthetic content. While Google's updated 'political content' policy will kick in this month, Meta's policy on this front will come into effect in January. The urgency for such self-regulatory mechanisms cannot be overstated, given that big general elections are due in 2024 in India and the US, and in the UK a year later. In the recently-concluded elections in Argentina, the two presidential candidates—Sergio Massa and Javier Milei—had extensively used AI-powered posters and videos in their campaigns. The polls in the South American nation are seen as the first instance of widespread use of AI-based content in elections.